



Code: GCDA/GDDA
Adopted: 7/21/21

Criminal Records Checks and Fingerprinting

In a continuing effort to ensure the safety and welfare of students and staff, the public charter school shall require all newly hired employees¹ not requiring licensure under Oregon Revised Statute (ORS) 342.223 to submit to a criminal records check and/or fingerprinting as required by law. Other individuals, as determined by the public charter school, that will have direct, unsupervised contact with students shall submit to criminal records checks and/or fingerprinting, as established by Board policy and as required by law.

“Direct, unsupervised contact with students” means contact with students that provides the person opportunity and probability for personal communication or touch when not under direct supervision.

Pursuant to state law, criminal records checks or fingerprint-based criminal records checks shall be required of the following individuals²:

1. All individuals employed as or by a contractor considered by the public charter school to have direct, unsupervised contact with students;
2. Any community college faculty member providing instruction at the site of an early childhood education program, a school site as part of an early childhood program or at a grade K through 12 school site during the regular school day;
3. Any individual considered for volunteer service with the public charter school who is allowed to have direct or direct, unsupervised contact with students.

The public charter school will provide the written notice about the requirements of fingerprinting and criminal records checks through means such as staff handbooks, employment applications, contracts, or volunteer forms.

¹ Any individual hired within the last three months. A subject individual does not include an employee hired within the last three months if the public charter school has evidence on file that meets the definition in Oregon Administrative Rule (OAR) 581-021-0510(11)(b).

² Subject individuals and requirements are further outlined in GCDA/GDDA-AR - Criminal Records Checks and Fingerprinting.

The procedure for processing fingerprint collection is further outlined in GCDA/GDDA-AR – Criminal Records Checks and Fingerprinting.

A subject individual shall be subject to the collection of fingerprint information, only after the offer of employment or contract from the public charter school and may be charged a fee by the public charter school. A subject individual may request the fee be withheld from the amount otherwise due the individual.

When the public charter school is notified of a subject individual who has been convicted of any crimes prohibiting employment or contract the individual will not be employed or contracted, or if employed will be terminated. When the public charter school is notified of a subject individual who knowingly made a false statement as to the conviction of any crime, the individual will not be employed or contracted with by the public charter school, or if employed by the public charter school may be terminated. A subject individual who failed to disclose the presence of convictions that would not otherwise prohibit employment or contract with the public charter school as provided by law may be employed or contracted with by the public charter school.

The public charter school's use of criminal history must be relevant to the specific requirements of the position, services, or employment.

The public charter school shall begin the employment of a subject individual or terms of a public charter school contractor on a probationary basis pending the return and disposition of the required criminal records check.

The service of a volunteer allowed to have direct or direct, unsupervised contact with students will not begin before the return and disposition of a criminal records check. A volunteer that is not likely to have direct or direct, unsupervised contact with students will not be required to undergo an in-state criminal records check.

A volunteer who knowingly made a false statement or has a conviction of the crimes listed in ORS 342.143, or the substantial equivalent of any of those crimes if the conviction occurred in another jurisdiction or in Oregon under a different statutory name or number will result in immediate termination from the ability to volunteer in the public charter school.

The public charter school administrator shall develop administrative regulations as necessary to meet the requirements of law.

END OF POLICY

Legal Reference(s):

[ORS 181A.180](#)
[ORS 181A.230](#)
[ORS 326.603](#)
[ORS 326.607](#)
[ORS 336.631](#)

[ORS 338.115\(1\)\(h\)](#)
[ORS 342.127](#)
[ORS 342.143](#)
[ORS 342.223](#)

[OAR 414-061-0010 - 0030](#)
[OAR 581-021-0510 – 021-0512](#)
[OAR 581-022-2430](#)
[OAR 584-050-0012](#)

Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 2000e, et. seq. (2012).